

PERFORMANCE WORK STATEMENT (PWS)

Prescribed Burning Services Missouri River Recovery Program Lands

1.0 General Information

1.1 Background. The areas are part of the Missouri River Recovery Program Bank Stabilization and Navigation Project (BSNP) Fish and Wildlife Mitigation Project. These lands are part of an effort to compensate for the loss of fish and wildlife habitat from development of the BSNP along a portion of the Missouri River. Some of the sites are regularly used by the public for recreation.

1.1.1 Objectives. The primary goal is to reduce fuel loads and reduce the likelihood of uncontrolled wildfires destroying habitat and spreading onto adjacent lands. The secondary goal is to promote early successional habitat.

1.2 Scope of Work. The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, permits, insurance, supervision and other items necessary to perform prescribed burning services on a minimum of 2,149 acres of USACE lands up to a maximum of 4,174 acres. This is a fixed priced, performance-based service contract where desired outcomes are defined and measured while Contractor methods are generally not constrained or directed. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.3 Period of Performance. The Contractor shall be required to complete all services between September 1, 2025 and March 31, 2026. It shall be the responsibility of the Contractor to determine favorable weather and site conditions for successful burning within the period of performance.

1.4 Contractor Personnel

1.4.1 The Contractor shall perform all work under this contract using his or her own forces except as provided in Paragraph 1.4.2 Subcontracting. Employees who perform this work shall be qualified persons on the Contractor's own payroll.

1.4.1.1 Special Qualifications. The Contractor is responsible for ensuring 1) all personnel are a minimum of eighteen (18) years of age, 2) all personnel involved in burning operations have the technical knowledge and ability to properly perform the required work activities, 3) all personnel involved in prescribed burning operations must have a valid red card and at a minimum be trained in fire line safety, basic wild land fire behavior, basic wild land fire suppression tactics, communication procedures, first aid and use, and limitations and care of protective and firefighting equipment, 4) all personnel involved with the operation of vehicles on public roadways possess and maintain a valid United States issued operator license during the period of performance of this agreement, 5) all vehicles and equipment operated on public roadways are legally registered, licensed, and insured to do so and meet all State and local laws, and 6) all personnel are trained and have working knowledge of the specific vehicles/equipment they will operate and tasks they are directed to perform.

1.4.2 Subcontracting. The Contractor shall not subcontract any work without written approval of the Contracting Officer. Compliance with the provisions of this contract by subcontractors shall be the responsibility of the Contractor.

1.5 Quality Control

1.5.1 The Contractor shall designate, in writing, an employee who shall serve as the contact for matters involving quality and performance or nonperformance of the required work stated in this PWS. The employee(s) shall be qualified and fully competent with full authority to act for, and on behalf of, the Contractor as necessary to ensure that the required work is performed in accordance with the standards contained herein. The Contractor shall furnish the above written designation to the Contracting Officer's Representative (COR) no later than the first day of work. The Contractor shall include the name(s), address(es), and telephone number(s) of the responsible individual(s).

1.5.2 The Contracting Officer reserves the right to disapprove any individual whom he considers incompetent to perform the work required. The Contracting Officer (KO) will provide a written notice of any disapproval to the Contractor.

1.6 Quality Assurance. The Government will use a Quality Assurance Surveillance Plan (QASP) to ensure that the Contractor is performing the services required by this PWS in an acceptable manner. The Government may use Quality Assurance Evaluators (QAE(s)) to provide assistance with the quality assurance methods.

1.6.1 The Government has the right to inspect all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government shall perform inspections in a manner that will not delay the work.

1.6.2 If any of the services do not conform to contract requirements, the Government may require the Contractor to perform the services in conformity with contract requirements and at no increase in cost. If the contract requirements are not met after a second attempt the Government may (1) require the Contractor to take necessary action to ensure that future performance conforms to contract requirements and (2) reduce the contract price to reflect the reduced value of the services performed.

1.6.3 The Government may take action if the Contractor fails to perform the services again or to take the necessary action to ensure future performance is in conformity with the contract requirements. The Government may (1) by contract, or otherwise, perform the services and charge to the contractor any cost incurred by the Government that related to the performance of such service or (2) terminate the contract in whole or in part.

1.6.4 The Contractor is responsible to replace/repair any damage to Government property due to negligence, at his or her own cost. The Government may take action, if the Contractor fails to replace/repair any damage to Government property. The Government may (1) by contract, or otherwise, replace/repair damaged government property and charge to the Contractor any cost incurred by the Government to replace/repair any damage.

1.7 Hours of Operation. The Contractor is responsible for conducting business, between sunrise and sunset, Monday thru Friday, as conditions allow, except Federal holidays or when the government facility is closed due to local or national emergencies, administrative closings, or similar government directed facility closings, unless approved in advance by the COR. The Contractor must maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.8 Pre-Work Meeting. Prior to commencing any activities, the Contractor shall arrange a pre-work meeting with the COR. The meeting shall discuss the work requirements, scheduling, submittal process, review of the Activity Hazard Analysis (AHA), and Accident Prevention Plan (APP). At least one (1) week prior to commencing work, the Contractor shall coordinate their proposed work schedule with the COR.

1.9. Submittals. Prior to commencement of services, the Contractor shall submit the following documents to the COR for review and approval:

- a. Activity Hazard Analysis (AHA)
- b. Accident Prevention Plan (APP)
- c. List of who will perform work on this contract
- d. Proof of Insurance for Contractors and Subcontractors
- e. Copies of Red Cards for all personnel involved in prescribed burning operations
- f. A burn plan for successfully burning all awarded areas

1.10 Standards and Regulations. The Contractor shall perform to the standards in the contract and comply with all Local, State, and Federal Regulations during the services performed. The Contractor is responsible for ascertaining the extent to which these regulations affect the operations resulting from this contract. The Contractor shall comply with all applicable regulations. Applicable regulations include, but are not limited to the following:

- a. Code of Federal Regulations (CFR), Title 36, Chapter III, Part 327, Rules and Regulations Governing Public Use on Corps of Engineers Water Resource Development Projects EP 1165-2-316 (http://www.publications.usace.army.mil/Portals/76/Publications/EngineerPamphlets/EP_1165-2-316.pdf?ver=2013-08-22-104526-670)
- b. Engineering Manual (EM) 385-1-1 (USACE – Safety and Health Requirements Manual), dated March 2024; (https://www.publications.usace.army.mil/Portals/76/EM%20385-1-1%20_EFFECTIVE%2015March2024.pdf)
- c. Occupational Safety and Health Standards (29 CFR 1910)
- d. The Nebraska Department of Environmental Quality Open Burning Guidance (<https://dee.nebraska.gov/forms/publications-grants-forms/07-279>).

1.10.1 Activity Hazard Analysis (AHA). The Contractor shall prepare the AHA in accordance with Paragraph 2-6 of the EM 385-1-1.

1.10.1.1 ENG Form 6206, Activity Hazard Analysis (AHA)
(<https://www.publications.usace.army.mil/LinkClick.aspx?fileticket=K66no-4Lv4%3d&tabid=16438&portalid=76&mid=43543>)

Note: Contractors and other individual employer’s typically use Job Safety Analyses (JSAs), Job Hazard Analyses (JHAs), or similar Risk Management assessment tools. The Government considers equivalent to, and acceptable substitutes for, the USACE’s AHA provided the data collected is the same as that required by the AHA, commensurate with the type of services the Contractor is performing.

1.10.2 Accident Prevention Plan (APP). The Contractor shall prepare an APP in accordance with Paragraph 2-7 of EM 385-1-1. The Contractor shall only need to submit items in Part 11 that are pertinent to the contract. The Contractor shall use a qualified person to prepare the site-specific Accident Prevention Plan (APP). The Contractor shall prepare the APP in accordance with the format and requirements of the EM 385-1-1 and supplemented herein. The Contractor shall sign and submit the APP to the COR for approval prior to the start of work onsite.

1.10.2.1 ENG Form 6293, Accident Prevention Plan (APP) Worksheet (mandatory)
(https://www.publications.usace.army.mil/LinkClick.aspx?fileticket=LmW_eJDoLpI%3d&tabid=16438&portalid=76&mid=43543)

1.11 General Security Requirements and Guidance. The security requirements described below apply to all contract personnel (including employees of the prime Contractor (“Contractor”) and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as “RAMs”), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures- this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

1.11.1 Physical Security. The Contractor shall secure at all times all government facilities, property, and materials. All contract personnel requiring physical access to a federal installation or facility shall comply with access control procedures of that location. Specific security conditions may change based on threats to national defense and based on the risk of specific facilities to these threats. The Contractor shall abide by these changing conditions at all times, as applicable.

1.11.2 Key Control. The Contractor shall ensure all keys issued by the Government are not lost, stolen, duplicated, or used by unauthorized persons. All keys issued by the Government will be turned at the end of the contract. Any unused keys or keys issued to personnel that no longer require access will be turned into the COR.

1.11.2.1 The Contractor shall immediately report to the COR any occurrences of lost or stolen keys.

1.11.2.2 In the event keys, other than master keys are lost or stolen, the Contractor may be required, upon written direction of the COR, to re-key or replace the affected lock or locks without cost to the government. The Government may, however, at its option, replace the affected lock or locks or perform re-keying and deduct the cost of such from the monthly payment due the Contractor. If a master key is lost or stolen, the government may need to replace all locks and keys for that system. The Government will deduct the total cost to replace the locks and keys from the contractor's monthly invoice.

1.11.2.3 The Contractor shall prohibit the use of keys issued by the Government by any persons other than the contractor's employees. The Contractor shall not facilitate access of secured areas to persons other than contractor personnel or subcontractors engaged in performance of contract work requirements.

1.11.3 Suspicious Activity Reporting Training (e.g. iWATCH, CorpsWatch, or See Something, Say Something). All contract personnel shall receive initial and annual refresher training from the RA representative on the local suspicious activity reporting program. This locally developed training provides contract personnel with general information on suspicious behavior, and guidance on reporting suspicious activity to the project manager, security representative or law enforcement entity.

1.11.4 Pre-screen Candidates Using E-Verify Program. Contractors shall comply with the requirements set forth in FAR clause 52.222-54 Employment Eligibility Verification and FAR Subpart 22.18 in using the E-Verify Program at (<https://www.e-verify.gov>) (website subject to change) to meet the contract employment eligibility requirements. Contractors are encouraged to cooperate with Federal and State agencies responsible for enforcing labor requirements to include eligibility for employment under United States immigration laws in accordance with FAR 22.102-1(i). An initial list of verified/eligible candidates shall be provided to the COR no later than three business days after the initial contract award. When contracts are with individuals, the individuals will be required to complete a Form I-9, Employment Eligibility Verification, and submit it to the Contracting Officer to become part of the official contract file.

1.12 Payment.

1.12.1 The Government will make payment **monthly** upon completion of services, after the Government has inspected and accepted the services, and the Government has reviewed, approved, and processed the Contractor's invoice. The Contractor shall submit the invoice to the COR and/or any other person that has been designated in the contract to receive the invoice.

1.12.2 The Contractor must provide the contractor's name, address, contract number, period of services completed (*i.e., for the month of January*), CLIN number and specific quantities of work performed (*i.e., 100 acres, etc.*), and total requested, for an invoice to be considered proper. The Contractor shall submit the invoice by the fifth (5th) of the month for services completed the previous month, or submit the invoice upon completion of all services, in accordance with the period of performance stated in the CLIN.

2.0 Definitions. The following definitions and descriptions apply wherever the word(s) or phrase(s) is/are stated in this PWS:

Acceptable Level of Performance (ALP): The maximum percent defective, the maximum number of defects per hundred units, or the number of defects in a lot considered satisfactory on the average. The allowable leeway or variance from a standard before the government will reject the specific service.

Contractor: A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime contractor.

Contracting Officer (KO): A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

Contracting Officer's Representative (COR): means an individual designated an authorized in writing by the Contracting Officer to perform specific technical or administrative functions.

Performance-Based Contract (FAR 2.101): Structuring all aspects of an acquisition around the purpose of the work to be performed with the contract requirements set forth in clear, specific, and objective terms with measurable outcomes as opposed to either the manner by which the work is to be performed or broad and imprecise.

Performance Requirements Summary (PRS): The PRS shows contract requirements, the component requirements related to each contract requirement, the price of each work requirement as a percentage of the associated contract requirement (Fixed Price Contracts), the standard of performance, and the acceptable level of performance (ALP) for each work requirement.

Quality Assurance Surveillance Plan (QASP): An organized written document used by the Government for quality assurance surveillance. Document contains sampling/evaluation guides, checklists, and the performance requirements summary (PRS).

3.0 Government Furnished Items and Services

3.1 Services. The Government will provide Contractor staff transportation to island sites via boat. Government transport to islands via boat can accommodate Contractor employees, small handheld equipment, and backpacks. The Contractor will need to provide Government staff sufficient notice to coordinate transportation via boat. The Contractor may use their own boat to access island areas, if desired.

3.2 Facilities. The Government will not provide any facilities to the Contractor.

3.3 Utilities. The Government will not provide any utilities to the Contractor.

3.4 Equipment. The Government will not provide any equipment to the Contractor.

3.5 Materials. The Government will not provide any materials to the Contractor.

4.0 Contractor Furnished Items and Responsibilities

4.1 General. The Contractor shall furnish all supplies, equipment, facilities, and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2. Utilities. The Contractor shall furnish their own water. The Contractor is authorized to utilize water from the Missouri River in areas where access is available. Access may not be available at all locations and Contractors are not authorized to use water from any sources within sites (i.e. ponds, etc.).

4.3. Equipment. The Contractor shall furnish all necessary equipment, such as but not limited to, vehicles, fuel, personal protective equipment, etc. to complete the requirements of this PWS.

4.3.1. Equipment Storage. The Contractor's equipment shall not be stored on Government property administered by USACE. At the close of each workday, all equipment shall be removed from Government lands. It is the

Contractor's responsibility to secure their personal property during working and non-working hours. The Government will not be held liable for damaged, lost, stolen, or vandalized property.

5.0 Specific Tasks

5.1 Basic Services. The Contractor shall apply prescribed burning techniques to effectively burn vegetation within a minimum of 2,149 acres (Base area) and up to a maximum of 4,174 acres (includes all option areas). The base area contains four (4) separate sites with nine (9) burn units. Option areas consist of an additional six (6) sites with eight (8) burn units. Maps of sites and burn units are in Attachment 1. Details of sites and burn units are in Section 5.3. The Contractor is responsible for ensuring suitable firebreaks are present to contain the burn within the designated burn areas. Post burn, the Contractor shall conduct sufficient mop-up activities to ensure the fire does not reignite or spread outside of the designated area. All prescribed burning operations shall be conducted in a safe and professional manner.

5.1.1 Firebreaks. The Contractor is responsible for ensuring suitable firebreaks are present to contain the burn within the designated burn areas. The Contractor is responsible for creating any necessary firebreaks (i.e., mowing, tilling, wetting down edges, etc.). Firebreak locations should be as close as feasible to what is shown on maps to safely burn the area while accommodating actual ground conditions. Some burn units may have sharp corners on maps. These corners may be rounded/softened where necessary to safely conduct burning activities.

5.1.2 Notification. The Contractor is responsible for notifying local authorities of the burn prior to its implementation, including local Fire Departments, and all other notification required by law, prior to commencement of any burning work under this contract, in accordance with all applicable laws.

5.1.2.1 Notification of Chemical Spills, Damage, or Injury. The Contractor shall notify the COR immediately (on the day of occurrence/observance) of any chemical spillage, damage to Government property, and injury to any person resulting from the Contractor's operations. In the event of a spill, the contractor shall comply with state reporting requirements. In the event of a chemical spill, the Contractor shall adhere to the three C's (Control, Contain, and Clean up) to the best of their ability and within their level of safety:

- a) Control the Spill Situation (stop or prevent any further chemical spillage).
- b) Contain the Spill (if possible).
- c) Clean Up (follow correct procedures for size of spill & chemical type).

5.1.3 Permits. The Contractor is responsible for obtaining any necessary permits to legally complete the contract requirements.

5.1.4 Smoke Management. Burning shall be completed in a fashion to minimize smoke crossing public roadways. The Contractor is responsible for ceasing burning operations should smoke become a safety issue on public roadways.

5.1.4.1 Compliance with the Bald Eagle and Golden Eagle Protection Act. The period of performance overlaps with sensitive periods of eagle nesting, including egg incubation, hatching, and rearing of young. Disturbing eagles with activities near nests or smoke during these sensitive periods could potentially result in non-purposeful take and is not permitted. There are two eagle nests at Cottier Bend. Any burning at Cottier Bend shall be completed prior to December 1 to avoid disrupting eagle nesting activities.

5.2 Location. Sites are located along the Missouri River in eastern Nebraska and have varying levels of access. Some areas (islands) can be accessed only via boat, some areas are public access only via boat but USACE will coordinate Contractor vehicle access with adjacent landowners prior to entry, and others have vehicle access (though some areas have locked gates). The Contractor will need to contact USACE prior to attempting to access Van Horn's Bend, Middle Decatur, Civil Bend, Cottier Bend, or Sonora Bend.

5.2.1 Site Inspection. It is the prospective Contractor's responsibility to inspect the sites where services are to be performed to satisfy themselves as to all general and local conditions that may affect the cost of performance of the agreement. The prospective bidder shall base their bid on their personal site visit/field assessments, rather than from any maps, aerial photos, or estimates that may be furnished by the Government as background/orientation

information. In no event will a failure to inspect the sites constitute grounds for withdrawal of a bid after opening, or a claim after award of the agreement.

5.2.2 Site Visit. An optional site visit will be held for prospective Contractors. The site visit will consist of an orientation at the Missouri River Project office followed travel to two sites that are generally representative of the types of areas to be burned. **The site visit will be held on 20 August 2025 at 9:00AM CST at the Missouri River Project Office. The address is 9901 John J Pershing Dr., Omaha, NE 68112. The POC for the site visit is Ruth Bentzinger, 402-996-3761, email ruth.e.bentzinger@usace.army.mil.**

5.3 Work Units. The work to be performed under this contract will occur within a minimum of 8 separate units at 5 sites and a maximum of 15 units within 10 sites. A summary of site-specific information is listed in the table below and detailed descriptions follow in Section 5.3.1-5.3.10.

Site Name	General Location	Approximate Acres To Burn	Type (Base or Option)	Summary of Conditions
Van Horn's Bend	Near Union, NE	490	Base	Primarily grassland with areas of dense scrub-shrub on north end. A wildfire burned the south portion in 2023.
Middle Decatur, NE	Near Decatur, NE	145	Base	Heavy, dense scrub-shrub and large woody debris on approximately 145 acres. Some open water areas. Burning must be completed between February 1 - March 31, 2026.
Tobacco Island	Near Plattsmouth, NE	790, 101, & 16 Island 47 & 174 Mainland	Base	Three islands (16, 101 acres & 790 acres). North mainland section 47 acres. South mainland section 174 acres. Adjacent cropland and dense woodland.
Civil Bend, NE	Near Union, NE	134 & 252	Base	Dense scrub-shrub and large woody debris. Heavy thatch layer. North section 134 acres. South section 252 acres.
Cottier Bend	Near Rulo, NE	380	Option	Primarily grassland with wetland ponds adjacent to west fence line. Areas of dense scrub-shrub establishing near wetland ponds and on N/NE portion of site. Eagle nests present- complete burning by Dec. 1, 2025.
Sonora Bend	Near Brownville, NE	153	Option	Primarily grassland with cottonwoods on the west portion. A wildfire occurred in 2018. Moderate to heavy fuel load.
Brownville Bend	Near Brownville, NE	368, 88, & 6	Options	Riverward section 368 acres. Landward section 88 acres. Herbaceous vegetation with dense trees establishing. Moderate to heavy fuel load. Last burned in 2017. Wooded tract 6 acres with understory of warm season grasses.
		748 Island	Option	Island is mainly grass and scrub shrub with areas of mature woodland.

Upper Hamburg Bend	Near Nebraska City, NE			
Kansas Bend	Near Peru, NE	214 Island	Option	Island is mainly grass and scrub-shrub with areas of mature woodland. Last burned 2017.
Nishnabotna Bend	Near Peru, NE	68 Island	Option	Island is mainly grass and scrub-shrub with areas of mature woodland. Last burned in 2017.

5.3.1 Van Horn's Bend, Unit 1, Base: Van Horn's Bend consists of 534 total acres. Unit 1 burn area is approximately 490 acres consisting primarily of grassland with areas of dense scrub-shrub. A private levee separates a lakeside residential development from the Van Horn's Bend site along the west and south boundary. Ervine Creek is located along the western boundary with the bluffs located a short distance further to the west. The Missouri River serves as the eastern boundary. The south boundary consists of an east-west earth berm with a drainage channel along the toe that may contain a minimal amount of ponded water from surface runoff. South of the east-west earth berm is private land. The western and southern areas of the site are primarily grassland and scrub shrub. The north section of the site is scrub shrub with larger deciduous trees found primarily along the river and in localized stands. A wildfire burned the southern portion of the site in 2023. USACE will coordinate land access with the Lake Waconda superintendent to allow crossing the private levee for direct entry into the Van Horn's Bend site.

5.3.2 Middle Decatur Bend, Unit 2, Base: Middle Decatur Bend is situated about 5 miles southwest of Decatur, NE and consists of a total of 184 acres. Unit 2 burn area is approximately 145 acres with areas of open water along the bank line. An old agriculture berm lined with mature trees separates an upland area from river bottomland. The upland area is about 37 acres in size consisting primarily of dogwood shrubland and grasses. Within the upland area are two separate communities of willow/cottonwood saplings totaling approximately two acres. The river bottomland portion extends from the old agriculture berm to the river and contains heavy, dense scrub-shrub and large woody debris deposited from previous flood events. The Missouri River serves as the north/northeast boundary. Private land borders the site to the west, south and east and firebreaks may be required along these boundaries, although there are existing mowed access paths within the site. USACE will coordinate land access with the neighboring landowners. Burning at this site must be completed between February 1 and March 31, 2026.

5.3.3 Tobacco Island, Units 3-7, Base: Tobacco Island is located about 2 miles southeast of Plattsmouth, Nebraska and consists of 1,643 total acres. A flow-through chute runs through the site and splits into two channels creating a large and a small island. The channel that flows along the west boundary and the bluffs divides the property into a north and south portion, which are accessed from different locations. There are 5 burn units within the Tobacco Island site (described below). Islands are a mixture of large mature trees, mainly cottonwoods, willows and sycamores. The understory is a mixture of warm and cool season grasses comprised primarily of reed canary grass. Significant amounts of large woody debris from flooding and high-water events are present. Steep banks may impact ingress and egress to some sections of the islands. Happy Hills housing development lies to the west of Tobacco Island in the bluffs. Land access is available on the north end from River Road which has a locked gate, and from Horning Road on the south end that has a locked gate.

5.3.3.1 Unit 3, Large Island: Unit 3 is the large island of approximately 790 acres. The large island is bound by the Missouri River along the north/northeast extending to the south, and by the flow-through chute along the west boundary. Riparian woodlands border the Missouri River. Deadfalls are abundant throughout the woodland. The island can only be accessed by boat.

5.3.3.2 Unit 4, Small Island: Unit 4 is a smaller island adjacent to the northwest of the Unit 3 large island and is situated between two chute inlets. Unit 4 burn area consists of approximately 16 acres and is bound by the Missouri River and the chute on all sides. The island consists mainly of scrub-shrub and grass understory. The island can only be accessed by boat.

5.3.3.3 Unit 5, Medium Island: Unit 5 is a medium-sized island on the south portion of the Tobacco Island site that is situated in close proximity to the bluffs. The Unit 5 burn area includes the entire island of 101 acres. This island is

bound by the flow-through chute on all sides; however, the 2019 flood deposited large amounts of sand into the channel along the bluff, although areas of open water may be present. This channel could potentially serve as a firebreak. The island vegetation consists primarily of scrub-shrub and grasses with open areas of sand. The island can only be accessed by boat.

5.3.3.4 Unit 6, North Mainland: Unit 6 is the north mainland portion with a burn area of approximately 47 acres. There is a stand of oak trees located about 300-feet from the north parking lot that will be excluded from the burn and may require firebreaks around the trees to protect the pin oaks from fire damage. Unit 6 vegetation consists of tall grasses, scrub-shrub, dogwoods, and Russian olive. Unit 6 is bordered by River Road to the west (a graveled county road that follows part of the boundary) and the chute along the east boundary. Firebreaks will be needed along the western edge, and the south and north boundary may need firebreaks installed. Land access is available for direct entry into Unit 6 at Tobacco Island.

5.3.3.5 Unit 7, South Mainland: Unit 7 is the south mainland unit with a burn area of approximately 174 acres. This south portion contains agriculture fields that are to be excluded from the burn and may require a firebreak around the crops. Woodland pockets, predominately cottonwood and mulberry, are within the Unit 7 burn area. Deadfalls are abundant throughout the woodlands. The terrain is relatively flat. An unnamed creek flows along the south boundary and a compacted dirt access road lies along the west side with the chute along the east side of the burn unit. Land access is available for direct access into Unit 7 at Tobacco Island.

5.3.4 Civil Bend, Units 8-9, Base: Civil Bend consists of 386 total acres and is comprised of two tracts that are separated by private land. The north tract is approximately 134 total acres and the south tract is approximately 252 total acres. A drainage channel carries flows from the bluffs across the north tract and continues in a southwest direction before entering the Missouri River (East Chute). A second drainage (West Chute) branches off from the East Chute near the west boundary of the south tract and joins the river further downstream from the East Chute. These chutes are typically void of flowing water. The entire site is relatively flat from east to west although a more significant elevation change occurs from north to south due to the descent from the bluffs to river's edge.

5.3.4.1 Unit 8, North Tract: Unit 8 comprises the north tract of Civil Bend and consists of approximately 134 acres. Along the western boundary, an agriculture berm separates the north tract from private farmland and could potentially serve as a firebreak. A band of deciduous trees, consisting of cottonwood, sycamore, elm and mulberry is established along the western boundary and contains an abundance of deadfall. The central area of the site is composed primarily of grassland with a minimal amount of scrub-shrub which transitions to mature woodland across the eastern half of the site. There is heavy thatch buildup in the grassland. An area of ponded water is located in the northeast portion of the site immediately adjacent to the river and is approximately 3.5 acres in size. From the pond area, a channel continues across the site exiting to the south. The channel is usually dry, but it may contain pockets of standing water. The Missouri River serves as the east boundary of Unit 8. The north boundary may need a firebreak placed as an underground pipeline is located about 75-feet to the north of the property line. Land access is available for Unit 8 burn area at Civil Bend.

5.3.4.2 Unit 9, South Tract: Unit 9 is the south tract of Civil Bend and consists of approximately 252 acres. The west portion of the unit is dominated by shrubland and grasses, while the east portion of the site is a mixture of grassland, forested wetland, and scrub shrub wetland. An empty, abandoned trailer is located on the eastern edge of the site near the riverbank. This unit has a heavy thatch buildup in the areas dominated by grasses and an abundance of deadfall. Land access is available for Unit 9 burn area at Civil Bend.

OPTIONS:

5.3.5 Cottier Bend, Unit 10, Option 1, CLIN 0002: The Cottier Bend site is a single tract containing approximately 388 total acres. The Unit 10 burn area is comprised of approximately 380 acres. The site is relatively flat with little to no change in gradient across the site. This unit is bordered by a private landowner's fence on the west side and the adjacent bluffs. Excavated wetlands are situated along the west boundary adjacent to the fence line and consist of open water and sand. Vegetation around the perimeter of the wetlands consist of willow scrub-shrub, bulrush and cattail. The riparian zone along the riverbank is sparse with a few scattered cottonwood, sycamore, and silver maple but does not contain any notable density of woodland tree species. The dominant types of vegetation on the site are grassland and emergent wetland species. This unit has a heavy thatch buildup. A channel enters the site from the east carrying water runoff from the bluffs and curves through the mid-portion of the site in a

south/southeast direction toward the river. A smaller channel follows along the north boundary for a short distance before turning south and flowing to the ponded wetland area along the west fence line. The smaller channel typically has a small amount of flowing water, whereas the larger channel may have pockets of water but has vegetation growing in the channel. Due to the presence of eagles nesting at the site, a fall burn will need to be conducted with completion of burn activities concluding prior to December 1, 2025. The neighboring landowner to the west (in bluffs) has a small cattle operation. Land access is available for direct entry via access easement into Cottier Bend. USACE will coordinate access with the adjacent landowner/tenant.

5.3.6 Sonora Bend, Unit 11, Option 2, CLIN 0003: Sonora Bend is approximately 190 total acres and is relatively flat, containing mostly grassland with cottonwoods established on the west portion of the site. Unit 11 is approximately 153 acres with the cottonwood community on the west portion excluded from the burn. The Missouri River borders the east side and the Steamboat Trace Trail, a public walking trail, runs along the southwest side. A drainage channel with fairly steep banks separates the MRRP site from private farmland along the north boundary and there are remnants of an old irrigation tower next to the channel bank. The site has a heavy thatch buildup, particularly in the center of the site immediately adjacent to the east of the cottonwoods. The south/southeast portion of the site is mainly open grassland with scrub-shrub establishing on flood-deposited sand. The southeast portion of the site can exhibit wetland characteristics when inundated for a period of time. An old earth berm is located along the south portion of the site that carries surface runoff to the river but is becoming vegetated with some standing water in the channel. This is the southern endpoint of the burn unit. Woodland is established along the riverbank and in the southeast corner of the site and consists mainly of cottonwood, sycamore, willow and mulberry. USACE will coordinate access along the Steamboat Trace Trail with the private landowner and Nemaha Natural Resource District (NRD). ****Real Estate certification required to exercise option****

5.3.7 Brownville Bend, Units 12-14, Options 3-5: Brownville Bend consists of approximately 469 total acres and is located about 1/2 mile south of Brownville, Nebraska. The Cooper Nuclear Station is located approximately .5 miles south of the site. There are 3 burn units within the site (described below). The majority of acres at Brownville Bend are located on the riverside of the USACE levee, between the levee and Missouri River, with additional acres situated on the landward side of the levee adjacent to County Road 648A Ave. A smaller tract containing 6.7 acres is located to the west of county road 648A Ave. Fuel types within this burn unit consist of a mix of warm and cool season grasses as well as moist soil plants and associated cottonwood woodlands.

5.3.7.1 Unit 12, Riverward Side of Levee, Option 3, CLIN 0004: Unit 12 consists of the entire area on the riverside of the levee. The burn area consists of approximately 368 acres of mixed grasses & forbs associated with moist soil areas and riparian woodland adjacent to the Missouri River. An open wetland area with standing water is located on the north central portion of the site. An excavated drainage channel, which may or may not have flowing water, flows along the northern edge and the Missouri River borders the entire east boundary. The northeast corner adjacent to the Brownville site is a 5.3 acre tract of private land with a cabin and is excluded from the burn unit. The levee separates this burn unit from Unit 13 that is located on the landward side of the levee. The south property line of Unit 12 separates private cropland and the Cooper Nuclear Station from the MRRP property. A firebreak would be needed along the south boundary line. Land access is available from county road 648A Ave and driving up/over the levee into Unit 12.

5.3.7.2 Unit 13, Landward Side of Levee, Option 4, CLIN 0005: Unit 13 is located on landward of the levee and is approximately 88 acres in size. This burn unit is split into 3 separate vegetated areas by two grass/dirt access lanes, one on the north end and one on the south, that lead from the county road to the levee and will likely act as firebreaks. Fuel types within this burn unit primarily consist of cattail, warm and cool season grasses, and some river bulrush. Land access is available from county road 648A Ave and using one of the two grass/dirt access lanes.

5.3.7.3 Unit 14, Small Wooded Area, Option 5, CLIN 0006: Unit 14 is a wooded tract of approximately 6.7 acres located on the west side of county road 648A Ave. The burn area is approximately 6 acres and consists of an understory of mixed warm season grasses with heavy woody encroachment. This burn unit is situated between private farmland to the south, the Steamboat Trace Trail and county road 648A Ave to the east, the bluffs on the north boundary and a private road that runs parallel to the site along the east boundary; however, there is an approximate 50-foot buffer from the private road to the Brownville Bend property line that would need to have a firebreak established. Homes are situated in the bluff area and Cooper Nuclear Station is across the county road to the east. Land access is available for direct entry into Unit 14.

5.3.8 Upper Hamburg, Unit 15, Option 6, CLIN 0007: Upper Hamburg Bend is approximately 1,575 total acres. A flow-through chute divides the site into a mainland and a large island. Unit 15 burn area is the entire island at the Upper Hamburg site, which consists of approximately 748 acres. The island is separated from the mainland by a chute on the west side and Missouri River borders the island on the east, north and south side. The Missouri River and flow-through chute could serve as natural firebreaks. The primary vegetation is warm and cool-season grasses, scrub-shrub and mature deciduous trees. The timing of the burn may need to be coordinated with the Missouri River Project Office if there is the potential for levee repairs to be occurring on the mainland of the Upper Hamburg site during the burn season. The closest distance between the edge of the island's bank and the levee toe is around 800-feet. Access to the island is by boat.

5.3.9 Kansas Bend, Unit 16, Option 7, CLIN 0008: Kansas Bend is approximately 622 total acres. A flow-through chute divides the site into a mainland and an island. Unit 16 is the entire island at the Kansas Bend site, which consists of approximately 214 acres. The island is bordered by the Missouri River on the north and east and the flow-through chute on the west and south which could serve as natural firebreaks. The primary vegetation on the island is mature deciduous woodland, with shrubland and grassland more dominant in the center of the island. The island was last burned in 2017. The timing of the burn may need to be coordinated if there is the potential for levee repairs to be occurring on the mainland of the Kansas Bend site during the burn season. Access to the island is by boat.

5.3.10 Nishnabotna Bend, Unit 17, Option 8, CLIN 0009: Nishnabotna Bend is approximately 533 total acres. A flow-through chute divides the site into a mainland and an island. Unit 17 is the entire island at Nishnabotna Bend, which consists of approximately 68 acres. The island is bordered by the Missouri River to the north and east and the flow-through chute to the west and south, which could serve as natural firebreaks. The vegetation is mainly grass, scrub-shrub, and areas of mature woodland. The island was last burned in 2017. The timing of the burn may need to be coordinated with the Missouri River Project Office if there is the potential for levee repairs to be occurring on the mainland of the Nishnabotna Bend site during the burn season. Access to the island is by boat.

5.4 Observance of Suitable Weather Conditions. The Contractor is responsible for determining burning conditions due to factors such as weather prior to mobilization to sites. The Contractor shall identify weather conditions before beginning any burning operations and continue to monitor weather conditions throughout the course of the burn. The Contractor shall immediately cease burning if weather conditions begin to adversely impact burning, or conditions are no longer within the parameters of the burn plan.

5.5 Resource Protection. The Contractor shall perform all work in such a manner as to minimize the polluting of air, water, or land. Fuels should be kept from entering public waters. If any spillage occurs, the Contractor shall remove the contaminated material from the ground and restore the area to its original condition. All waste, trash, garbage, etc., shall be removed from the work area at the end of each day.

5.6 Equipment Accountability. The Contractor shall clean ALL equipment prior to entering Government property. The equipment shall have not visible soil, roots, vegetative material, seeds, or other debris that could spread weeds.

6.0 Performance Requirements Summary. The Contractor service requirements are summarized into performance objectives that relate directly to mission essential items. The performance threshold briefly describes the minimum acceptable levels of service required for each requirement. These thresholds are critical to mission success.

Performance Objective	Standard	Performance Threshold	Method of Surveillance
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PRS # 1. The Contractor shall provide prescribed burning services on approximately a minimum of 2,149 acres (Base) up to a maximum of 4,174 acres (including all options).	The Contractor must provide prescribed burning services to the performance and safety standards outlined in the PWS.	The Contractor shall burn at least 90% of the ground cover and litter within specified burn areas.	100% Direct Observation
PRS # 2. The Contractor shall provide accurate invoices.	The Contractor must submit invoices in accordance with the PWS, specifically Part 1, provision 1.13.2	Zero Deviation from Standard	100% Inspection

7.0 Attachments

7.1 Attachment 1 – Maps Showing Locations of Project Sites and Burn Units

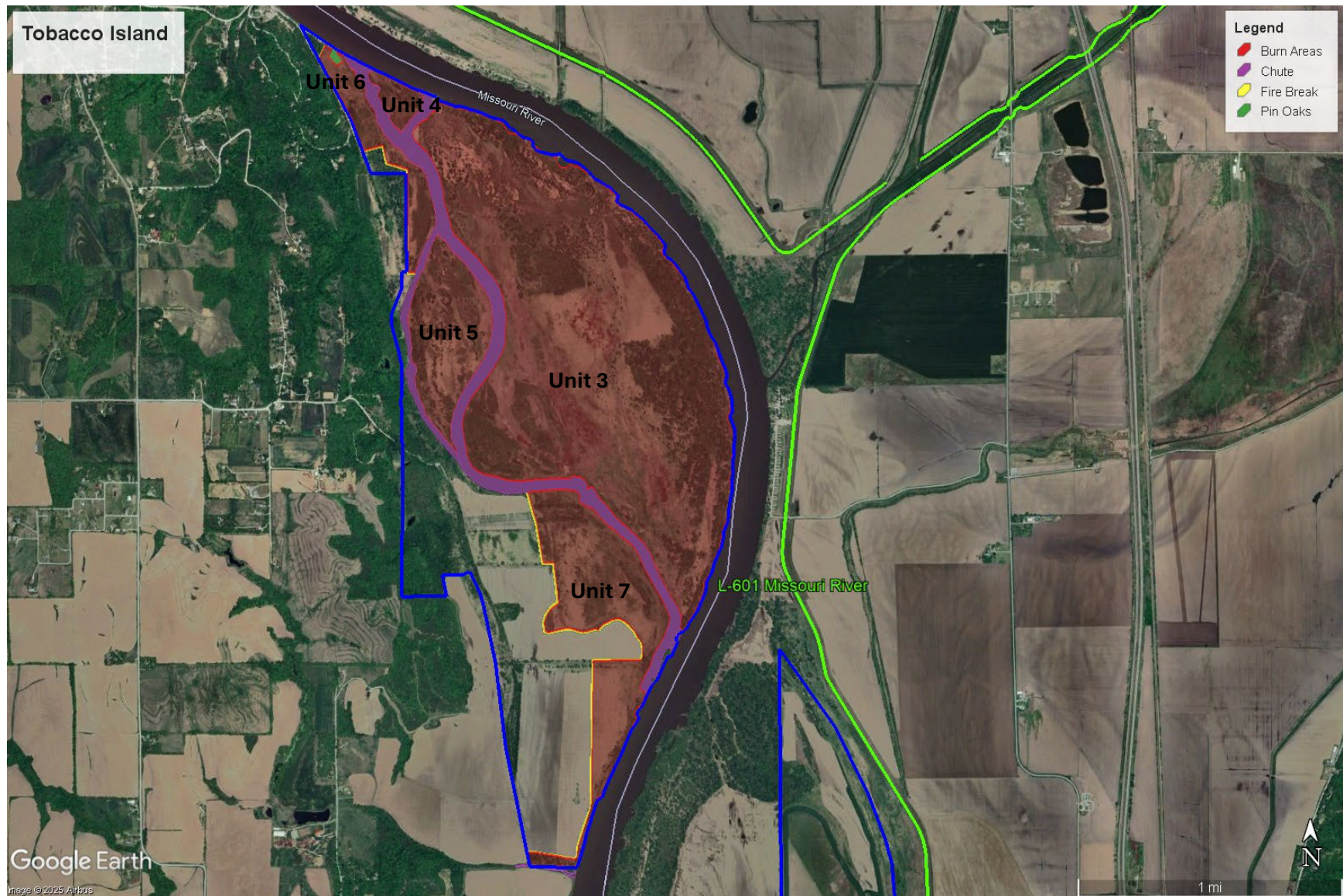
MRRP Prescribed Burning Services Attachment 1- Maps of Sites and Burn Units



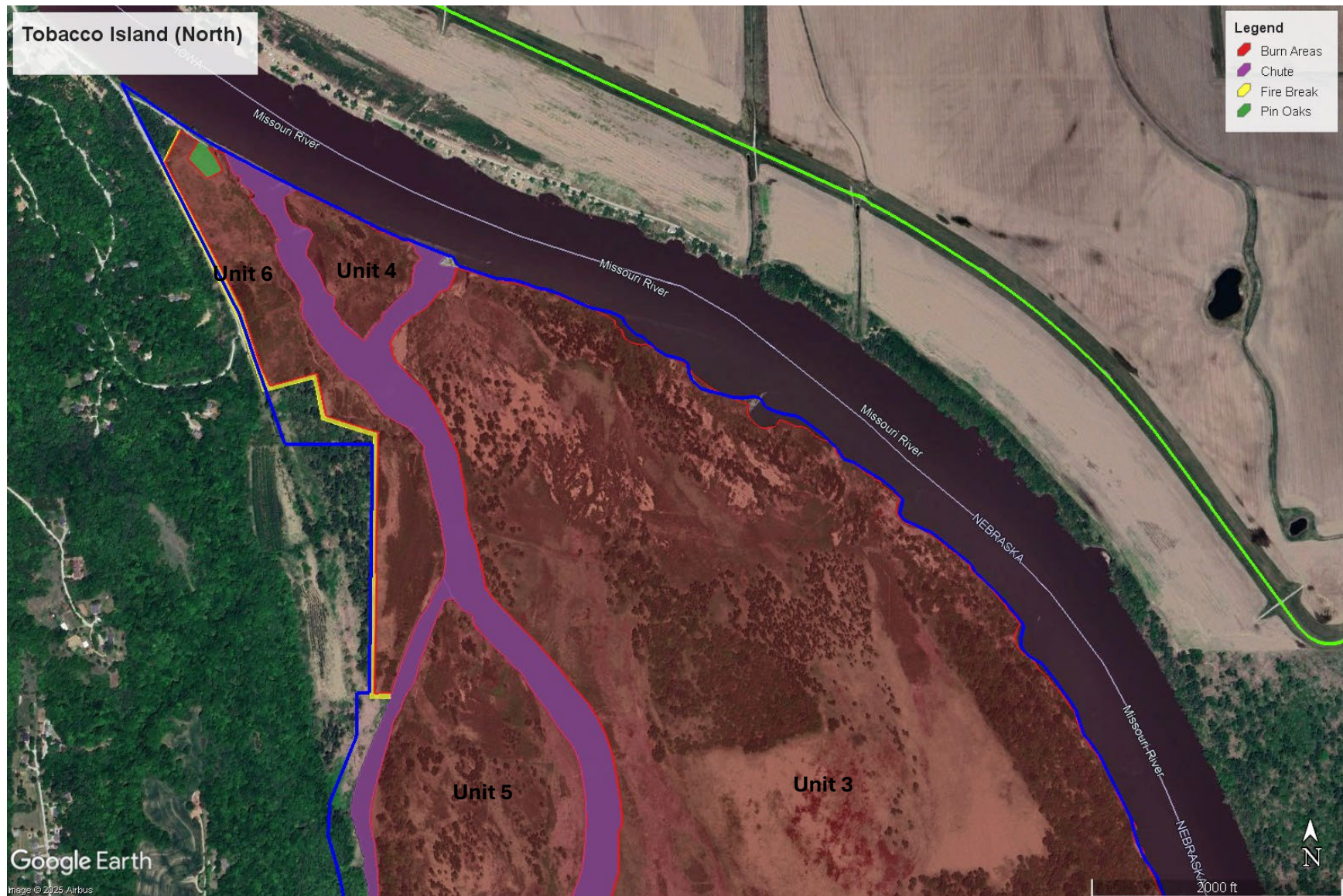
Unit 1- Van Horn's Bend (Base)



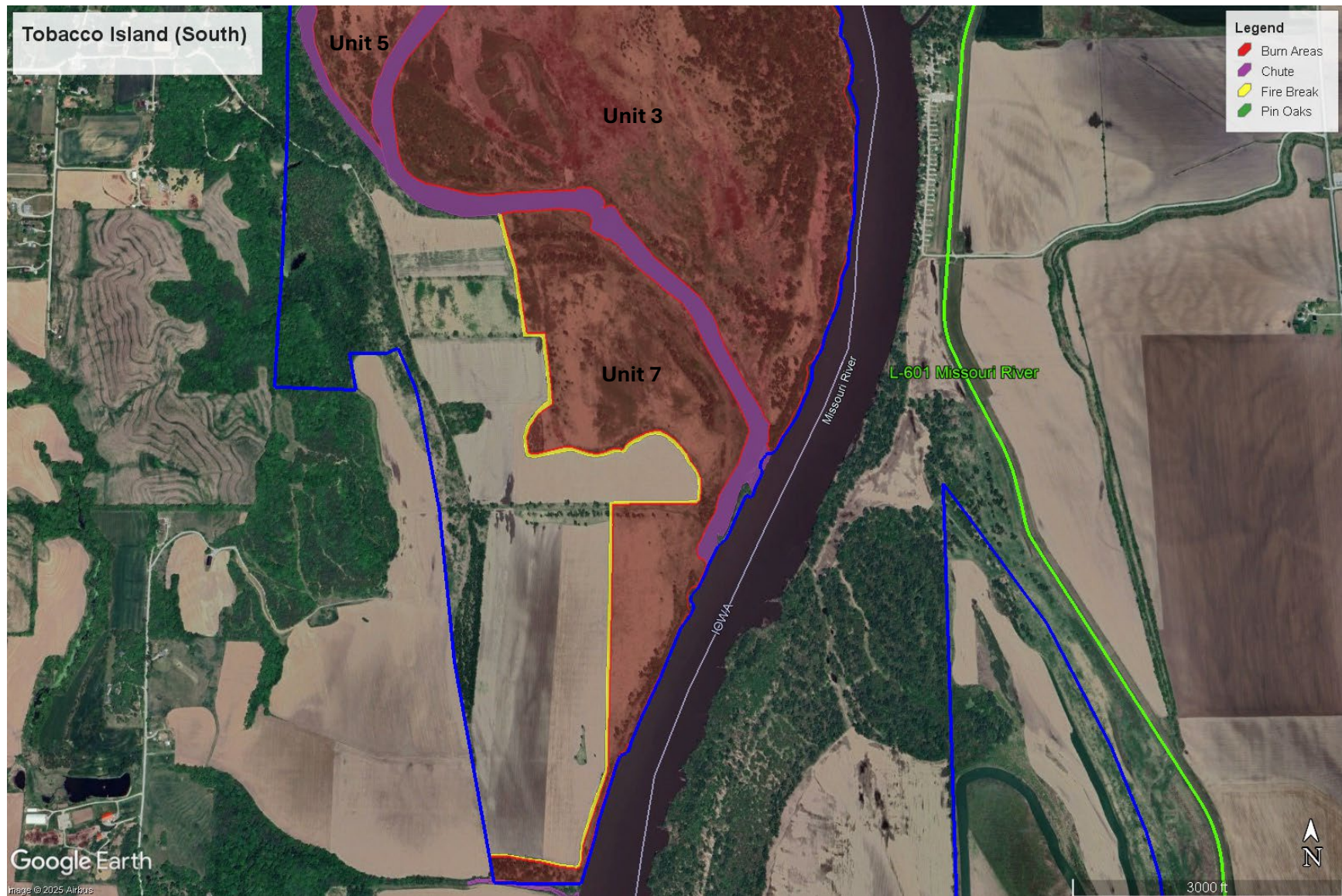
Unit 2 – Middle Decatur Bend (Base)



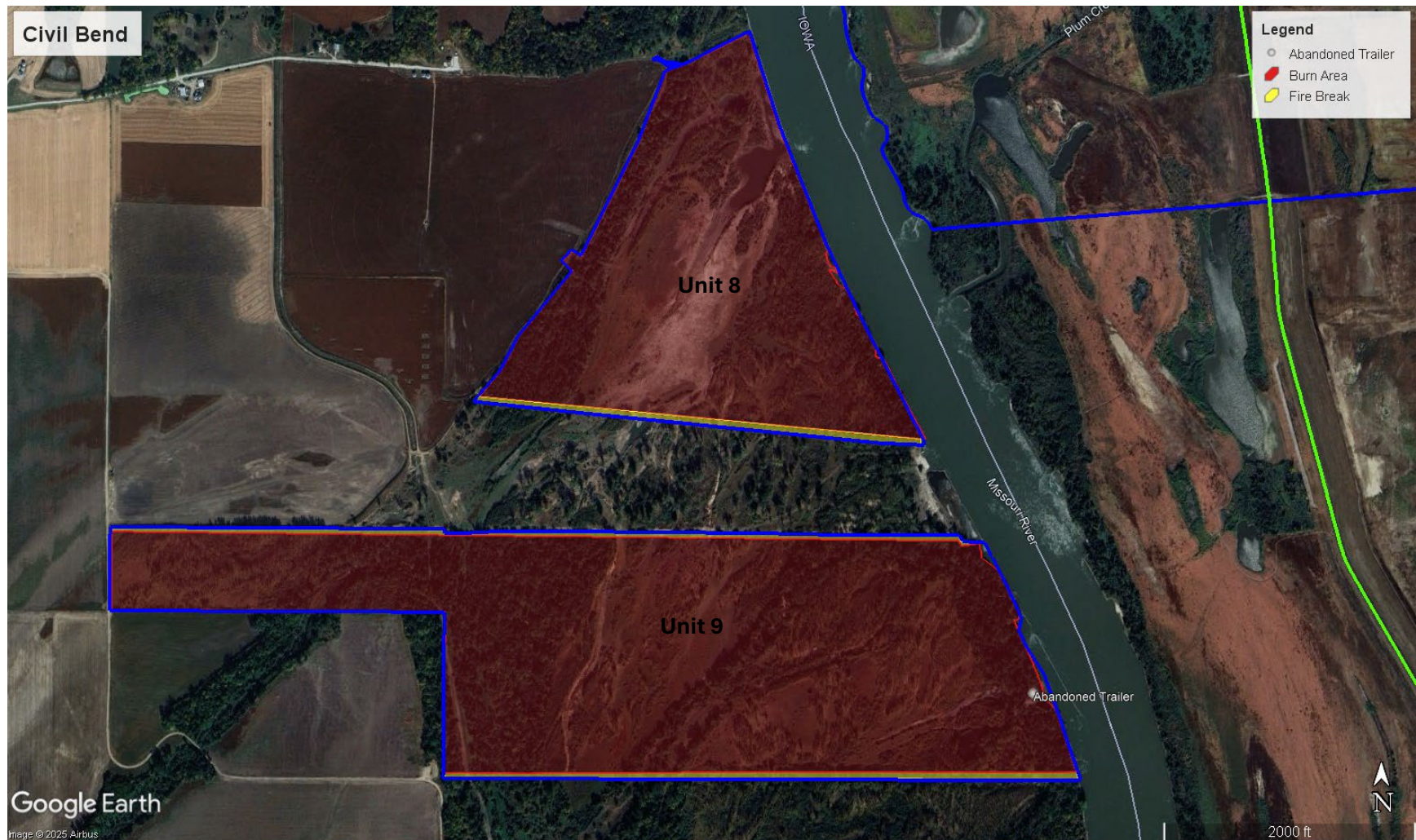
Units 3-7 –Tobacco Island (Base)



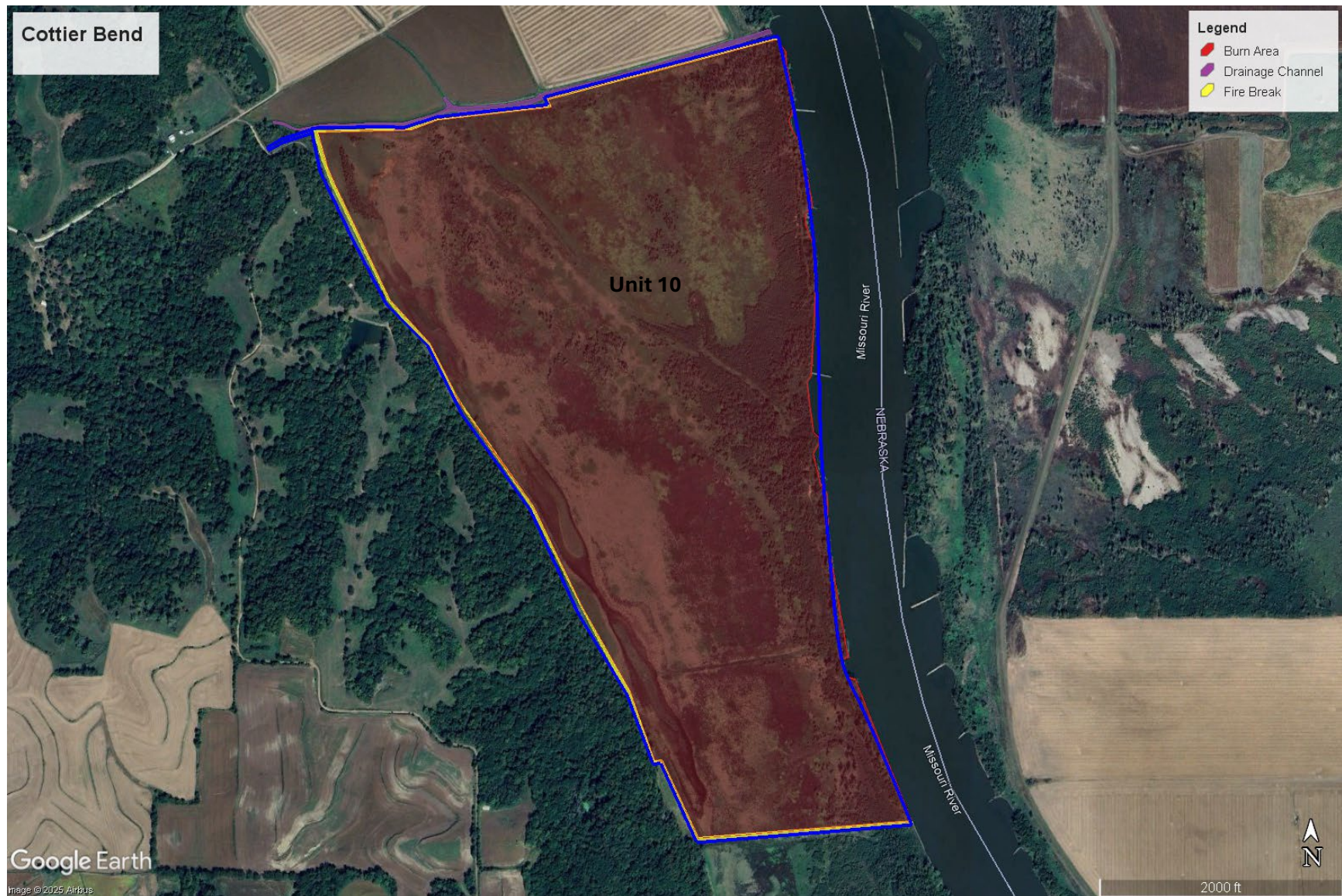
Close up of northern section of Tobacco Island



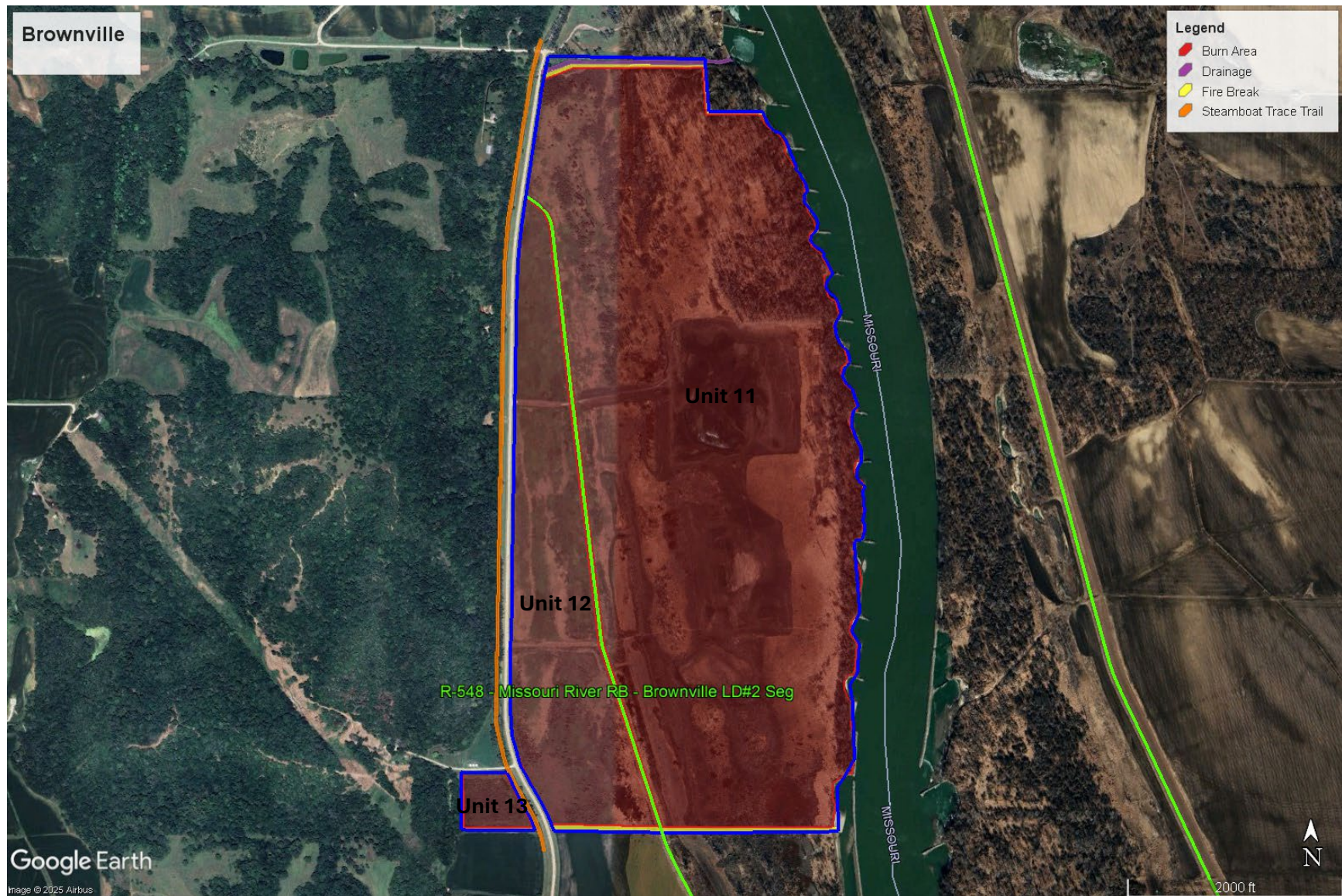
Close up of southern section of Tobacco Island



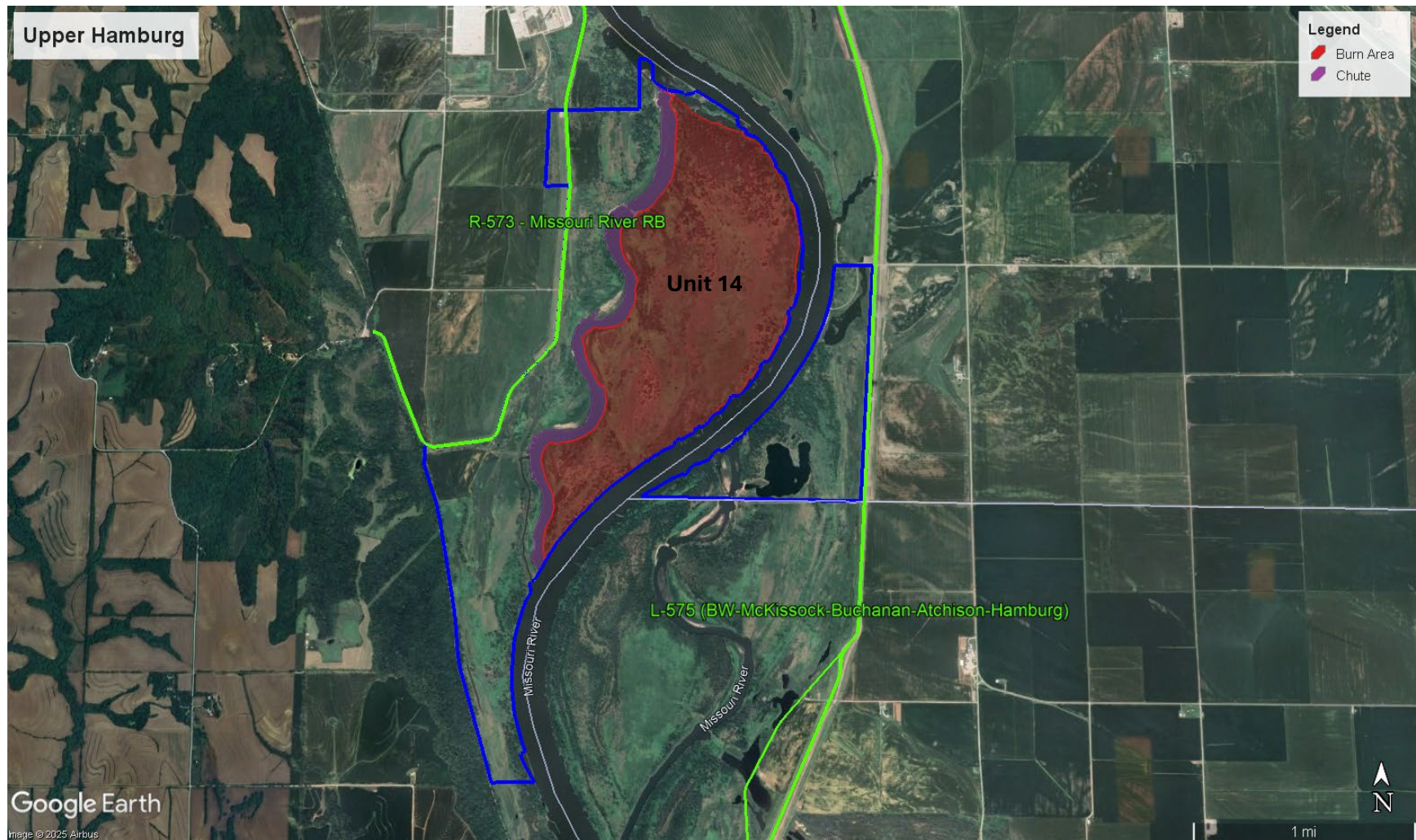
Units 8-9 –Civil Bend (Base)



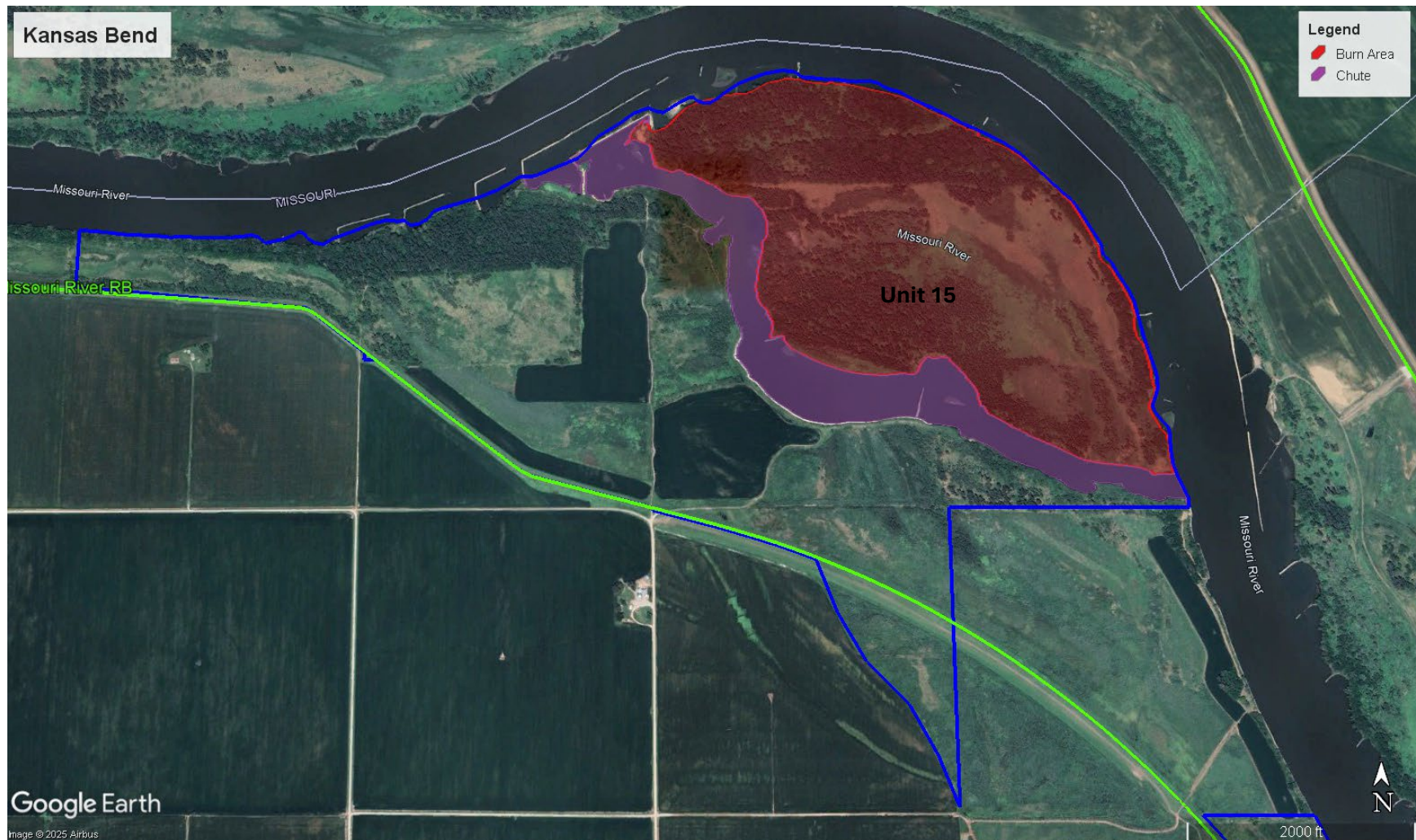
Unit 10 –Cottier Bend (Option)



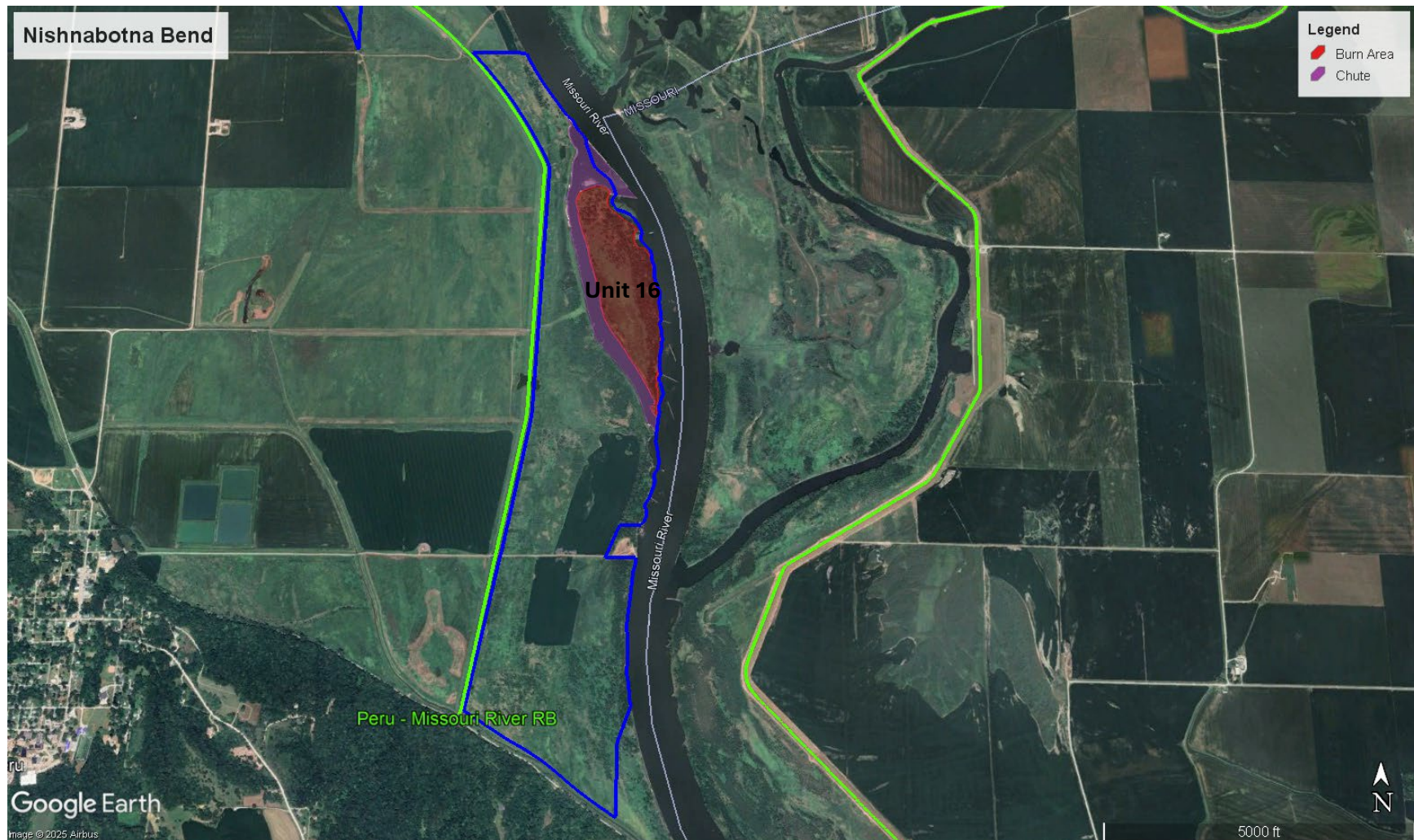
Units 11-13 - Brownville Bend (Options)



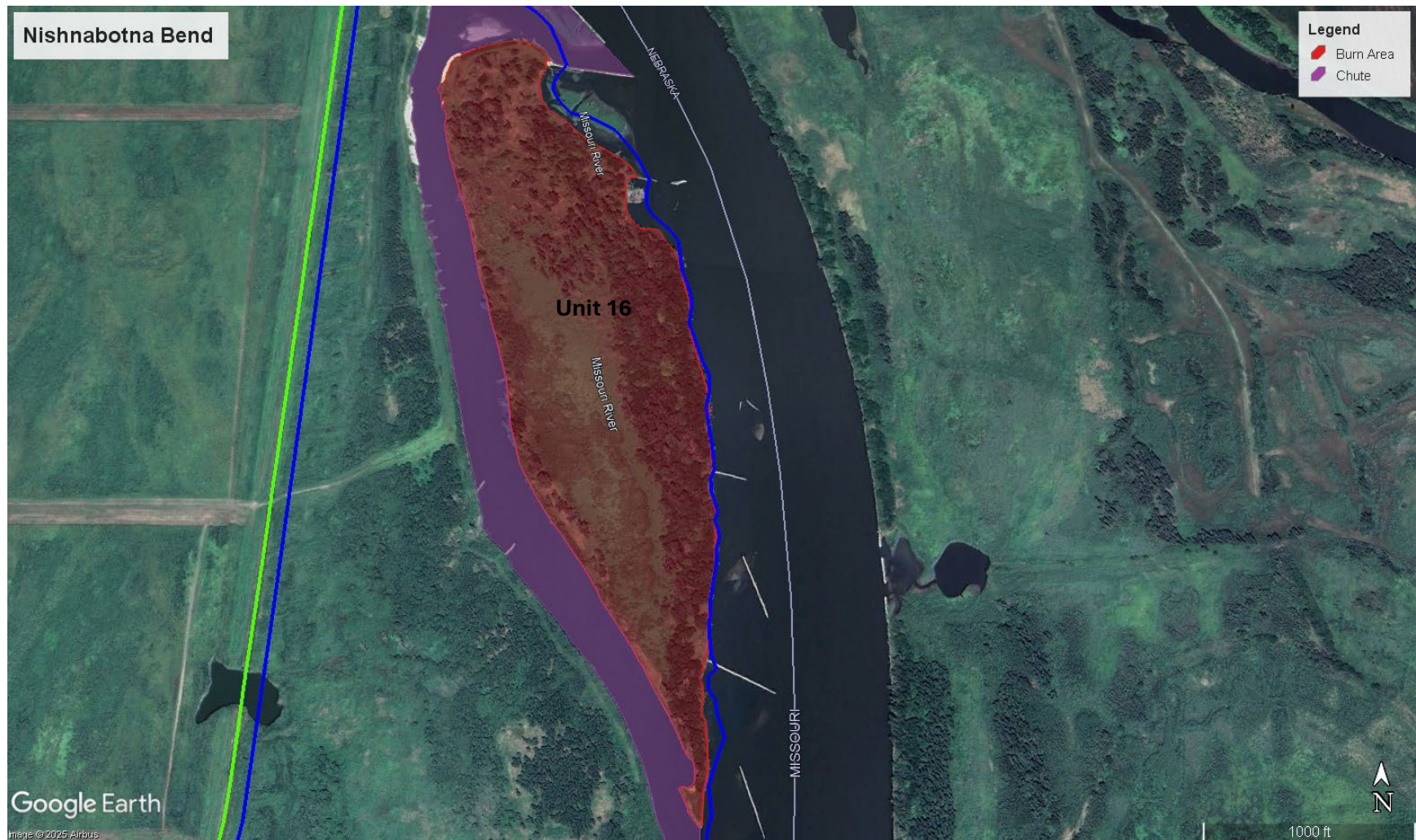
Unit14 – Upper Hamburg Bend (Option)



Unit 15 - Kansas Bend (Option)



Unit 16 - Nishnabotna Bend (Option)



Close up of Nishnabotna Bend